

Stereo.HCJDA 38.

Judgment Sheet
IN THE LAHORE HIGH COURT, LAHORE.

JUDICIAL DEPARTMENT

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Writ Petition No.19774 of 2019.

Meera Shafi (*Meesha Shafi*).

Versus

Learned Addl. District Judge, etc.

J U D G M E N T.

Date of hearing: **23.01.2026.**

Petitioner by: Muhammad Saqib Jillani, Advocate.

Respondent No.2 by: Mr. Umar Tariq Gill, Advocate.

AHMAD NADEEM ARSHAD, J. Through this constitutional petition filed under Article 199 of the *Constitution of Islamic Republic of Pakistan, 1973*, the petitioner has called in question the validity and legality of order dated 24.01.2019 pursuant whereunto application of the respondent No.2 under Order XXXIX Rule 1 & 2 C.P.C. was allowed.

2. Tersely, the facts forming background of the proceedings in hand are that respondent No.2 instituted a suit for damages to the tune of Rs.100/- Crores against the petitioner under the Defamation Ordinance, 2002, by maintaining therein that he is a renowned Actor, Singer and Artist who has worked extensively in Pakistan and across the Border and enjoys good reputation globally and the petitioner has leveled false and frivolous allegation of sexual harassment against

him in order to damage his repute. Along with the suit, he moved an application under Order XXXIX Rule 1 & 2 C.P.C. Suit, as well as the application, were resisted by the petitioner by filing written statement/written reply. Learned Trial Court, after hearing both sides, allowed the application vide order dated 24.01.2019. Feeling aggrieved, the petitioner has filed instant petition.

3. Heard. Record perused.

4. After hearing learned counsel for the parties and going through the record, it has been observed that learned Trial Court allowed the application of respondent No.2 vide impugned order in the following manner:

"In view of above, this application is accepted. Defendant shall not make any statement which is relevant to the controversy of defamation of plaintiff in this case till the decision of this suit."

5. It is an admitted position that the petitioner has levelled allegations of sexual harassment against respondent No.2, whereas the latter has categorically denied the same and has approached the competent court for redressal under the Defamation Ordinance, 2002. At this preliminary stage, the truthfulness or otherwise of the allegations cannot be determined without recording of evidence. Repetition or continuous propagation of such allegations, while the matter is sub judice, would amount to conducting a parallel media trial, which is neither permissible nor desirable in the interest of justice and fair adjudication.

6. During the course of arguments, learned counsel for the petitioner, while relying upon various judgments, maintained that injunction cannot be granted in a defamatory suit. He, while relying

on the case titled "**Bonnard v. Perryman (1891) 2 Ch 269**", argued that interim injunctions in defamation cases should only be granted in exceptional circumstances. In the present case, Respondent No.2 has instituted a suit for damages claiming substantial reputational harm arising from sexual harassment allegations made by the petitioner, and has simultaneously sought an injunction under Order XXXIX Rules 1 & 2 of the C.P.C. Therefore, in these exceptional circumstances, following the principles of *Bonnard v. Perryman*, an interim injunction restraining the petitioner from making any statement regarding the subject matter of the alleged defamation until the disposal of the suit is justified.

7. Although, Courts exercise restraint while granting injunctions restraining speech, however, there is no absolute bar in law against grant of such relief where circumstances so warrant. Where a person of established reputation claims that false allegations are being repeatedly propagated, the court is empowered to protect such reputation from irreparable harm till final adjudication. The learned Trial Court has rightly exercised its discretion by imposing a limited and reasonable restriction, instead of a blanket prohibition, thereby ensuring that the petitioner's right to speech is not completely curtailed. Hence, the contention raised by learned counsel for the petitioner that injunction cannot be granted in a defamation suit is misconceived.

8. In view of the above, respondent No.2 has successfully established a prima facie case in his favour. The allegations levelled against him, if found to be untrue, are of such a nature that they

directly strike at his dignity, honour and professional credibility. The material available on record prima facie shows that the suit raises serious triable issues requiring evidence, and therefore, the respondent No.2 cannot be left remediless during pendency of the proceedings.

9. As far as irreparable loss is concerned, it is a settled principle of law that reputation, once damaged, cannot be restored merely through monetary compensation. For a public figure whose career and livelihood depend upon public perception and trust, continuous circulation of unproven allegations would cause harm which cannot be quantified in terms of money. If the reputation of a responsible citizen can be measured in terms of money, then, it will amount to issue a license against a citizen and asking him to take money as compensation for the injury. In such circumstances, denial of interim protection would render the final relief, if granted, meaningless.

10. The balance of convenience also tilts heavily in favour of respondent No.2. If the injunction is not maintained, respondent No.2 would continue to suffer damage to his reputation on a daily basis. On the contrary, the petitioner would not suffer any irreparable prejudice by being restrained from making statements relevant to the controversy till the matter is decided on merits. The restraint imposed is temporary in nature and subject to the final outcome of the suit.

11. The objection raised regarding violation of Article 19 of the Constitution is also without substance. Freedom of speech, though a fundamental right, is not absolute and is subject to reasonable

restrictions imposed by law. Article 14 of the Constitution guarantees the inviolability of the dignity of man. The Defamation Ordinance, 2002, is a valid law enacted to strike a balance between these two competing rights. The impugned order, by restraining only such statements which are directly related to the matter in controversy, achieves this constitutional balance and does not amount to an unlawful curtailment of freedom of expression. I may here refer to "K. V. Ramaniah V. Special Public Prosecutor" (AIR 1961 Andh Pra 190), wherein the position of law has been succinctly described as under:-

"It is therefore impossible to accept the argument of the learned counsel for the revision petitioners that freedom of speech in Article 19(1) must be taken to mean absolute freedom to say or write whatever a person chooses recklessly and without regard to any person's honour and reputation. The right guaranteed by the Constitution, it must be borne in mind, is to all the citizens alike. The right in one certainly has a corresponding duty to the other and judged in that manner also the right guaranteed cannot but be a qualified one. Indeed the right has its own natural limitation. Reasonably limited alone, it is an inestimable privilege. Without such limitations it is bound to be a scourge to the Republic."

12. Lastly, this Court is mindful of the settled principle that discretionary orders passed by a competent court, particularly those relating to grant or refusal of interim injunction, should not be interfered with in constitutional jurisdiction unless the same are shown to be arbitrary, perverse or suffering from jurisdictional defect. The impugned order is a well-reasoned order based on sound legal principles and does not warrant interference by this Court. Learned counsel for the petitioner, despite hectic efforts, remained unable to

make out a case of interference. Case laws referred by the learned counsel for the petitioner are distinguishable from the facts & circumstances of the case in hand, hence, the same are not helpful for him.

13. For the foregoing reasons, this petition is **dismissed** being devoid of any force/substance. No order as to costs.

14. Before parting with this judgment, it is noted that learned counsel for the parties have informed the Court that the main suit is presently at the stage of final arguments. Accordingly, the learned Trial Court is directed to decide the suit, in accordance with law, expeditiously, preferably within a period of thirty (30) days, under intimation to this Court through the Deputy Registrar (Judicial).

(AHMAD NADEEM ARSHAD)
JUDGE.

APPROVED FOR REPORTING.

JUDGE.

*M. Arsalan**